

107	Aguilar vs. Vista Paint Corporation 2022-01291751	Motion for Final Approval of Class and PAGA Settlement The court has reviewed and considered the papers filed in support of plaintiff's motion for final approval of a \$1,400,000 class action and PAGA settlement. Subject to the submission of the document described below, the tentative ruling is to grant the motion as follows: \$5,000.00 for plaintiff's enhancement payment; \$420,000.00 for attorneys' fees; \$27,866.80 for litigation costs; \$11,000 for settlement administration costs; and \$40,000 total PAGA penalties (\$30,000 to LWDA). Plaintiff is ordered to submit within 10 days the administrator's supplemental declaration cited in and supporting plaintiff's responses to issue nos. 2 and 3 in the court's prior minute order. ROA 176. While counsel relies upon and states such a supplemental declaration has been filed, it has not. See ROA 183 ¶¶ 2-3 (citing "Supplemental Declaration of Taylor Mitzner with Respect to Notice and Settlement Administrator ('Supp. Admin. Decl.')." Plaintiff is ordered to submit within 10 days a proof of service showing, in detail, that all supplemental final approval moving papers were served on the LWDA. While plaintiff counsel's represents such proof of service would be "filed concurrently with the instant submission," no such filing exists. ROA 185 ¶ 3. The final accounting hearing is scheduled for June 3, 2027 at 2:00 p.m. in Department CX102. Plaintiff shall submit a final accounting report at least 16 court days before the final accounting hearing regarding the status of the settlement administration. The final report must include all information necessary for the court to determine the total amount actually paid to class members and aggrieved employees and any amounts tendered to the State Controller's Office under the unclaimed property law. If all funds are not fully and finally disbursed by the filing deadline, counsel must request a continuance. Plaintiff shall within 5 days submit a revised final order and judgment consistent with this ruling. Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service.
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108	Davis vs. Career Networks Institute, Inc. 2024-01389974	Motion for Preliminary Approval of Class/PAGA Settlement The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff’s motion for preliminary approval of a \$825,000 class action and PAGA settlement. Upon submission of papers reflecting the revisions identified below, the motion will be granted as follows: \$10,000.00 for plaintiff’s enhancement payment (not to exceed); \$275,000.00 for attorneys’ fees (not to exceed 1/3 of gross settlement amount); \$30,000.00 for litigation costs (not to exceed); \$7,500.00 for settlement administration costs (not to exceed); and \$80,000.00 total PAGA penalties (\$60,000.00 to LWDA). 1. Were all supplemental papers served on the LWDA? Plaintiff must file with the court a proof of service identifying the specific documents served on the LWDA, when plaintiff served the documents, and how service was effected. 2. The Miller declaration (ROA 82) is unexecuted and thus defective. An executed version must be filed. 3. Plaintiff was ordered to file a redline version of the proposed order but has failed to do so. The final approval hearing is scheduled for October 1, 2026 at 2:00 p.m. in Department CX102. The motion for final approval shall be filed at least 16 court days before the hearing. The court further refers Class Counsel to the “Guidelines for Approval of Class Action Settlements & PAGA Settlements” posted on the Court’s website for Department CX102, available at https://voypubapps.occourts.org/complex-civil-calendar. Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service.
109	Romero vs. BSH Home Appliances Corp 2024-01386303	Motion to Approve PAGA Settlement The Court has reviewed the supplemental materials provided by Plaintiff’s Counsel and finds that they fail to adequately address the previously identified issues. Accordingly, Plaintiff Christina Romero’s Motion for Approval of PAGA Settlement is CONTINUED to August 6, 2026 at 2:00 p.m. in Department CX102 in order to give Plaintiff’s counsel an opportunity to address the issues identified below. This is a PAGA-only action. On 3/18/2024, Plaintiff Christina Romero filed a PAGA complaint against Defendant BSH Home Appliances Corp. (ROA #2.) Defendant answered on 5/15/2024. (ROA #15.) The operative complaint is the first amended complaint, filed on 1/8/2025 pursuant to the parties’ stipulation and the court’s order granting leave, which alleges a single cause of action for PAGA civil penalties based on various Labor Code wage-and-hour violations. (ROA #44.) On 9/4/2025, Plaintiff filed the instant Motion for Approval of PAGA Settlement, and submitted for the Court’s review the Joint Stipulation of PAGA Settlement.